

Tentative Rulings and Resolution Review Hearings

July 27, 2026

Department 63

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

*****IMPORTANT: PLEASE NOTE THAT THE COURT NO LONGER USES COURTCALL. REMOTE APPEARANCES MAY NOW BE MADE THROUGH WEBEX.*****

Remote appearances through WebEx are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

To appear through WebEx, please follow these instructions:

Call 1-(844) 517-1271 at least 10 minutes before your hearing start time.

The access code is 2482 635 4223. There is no attendee ID number, so just follow verbal instructions for prompt.

Once you have gained access, wait for the court to start the calendar. Please follow these instructions once a calendar is called:

1. Please mute your telephone until your case is called.
2. Please do not place the call on hold.
3. Minimize all background noise during your call.
4. Please identify yourself, each time, prior to addressing the court.
5. Disconnect when the court has completed your case or cases.
6. The court prohibits the recording of these proceedings.

8:30 a.m. – Law & Motion

BELEU, ET AL. VS. GENERAL MOTORS LLC

CASE NUMBER: 25CV-0207896

Tentative Ruling on Motion for Attorney Fees and Costs: Plaintiffs Aimee and Matthew Belev filed this Song-Beverly Consumer Warranty Act case on June 9, 2025, alleging that their 2023 Chevrolet Silverado 1500 was defective and that Defendant General Motors, LLC ("GM") failed to conform the vehicle to its written warranty within a reasonable number of repair attempts. The case settled after a group mediation with GM agreeing to repurchase the vehicle, pay \$24,524.70 in reimbursement to Plaintiffs, and pay off the outstanding vehicle loan balance of \$32,152.70. The parties agreed GM would pay Plaintiffs' fees, costs, and expenses pursuant to Civ. Code § 1794(d).

Plaintiffs now seek attorney fees of \$32,977.51 (\$20,200 Zazzi + \$1,900 Fleckenstein + \$4,000 anticipated fees for this attorney fee motion + \$2,610 multiplier enhancement + \$2,940 paralegal + \$1,327.51 costs). GM does not dispute that Plaintiffs are entitled to reasonable fees and costs. However, GM opposes the fee motion, arguing the court should reduce hourly rates from \$500 to \$250 per hour, should reduce the hours billed, and should not

award the \$4,000 anticipated on this fee motion. There is no dispute regarding the costs.

Plaintiff's Counsel filed a Declaration of Kimberli Zazzi in Support of Plaintiffs' Reply to the Defendant's Opposition on July 20, 2026, concurrently with their Reply brief. The Declaration attaches Orders from various Superior Courts around the state (Exhibits 1-5). Plaintiff presents this evidence for the first time along with the Reply, which is improper. Plaintiff also fails to request the Court take judicial notice of these records. This Declaration and Exhibits will not be considered.

Merits: The Song-Beverly Act contains a cost-shifting provision that specifically allows prevailing buyers to recover their costs, including attorney's fees. Civ. C. § 1794(d). The attorney's fee award is limited to the amount the court determines was reasonably incurred by the buyer in commencing and prosecuting the action, based on actual time expended. The prevailing buyer has the burden of proving the fees were both reasonably necessary to conduct the litigation and reasonable in amount. Civil Code § 1794(d); *Robertson v. Fleetwood Travel Trailers of California, Inc.*, (2006) 144 Cal. App. 4th 785. The lodestar method applies to determining attorney's fees under the Song-Beverly Act. *Id.* at 817. When determining a reasonable attorney's fee award, using the lodestar method, the judge begins by deciding the reasonable hours the prevailing party's attorney spent on the case and multiplies that number by the prevailing hourly rate for private attorneys in the community who conduct non-contingent litigation of the same type. *Doppes v Bentley Motors, Inc.* (2009) 174 CA4th 967, 998.

Reasonableness of Hours: The court has discretion to decide which of the hours expended by the attorneys were reasonably spent on litigation. *Hammond v. Agran* (2002) 99 Cal.App.4th 115, 133. The predicate of any attorney fee award is the necessity and usefulness of the conduct for which compensation is sought. *Thayer v. Wells Fargo Bank, N.A.* (2001) 92 Cal.App.4th 819, 846. The court's focus in evaluating the fee request should be to provide a fee award reasonably designed to completely compensate attorneys for the services provided. The starting point for this determination is the attorney's time records. Absent clear indication they are erroneous, verified time records are entitled to credence. *Horsford v. Board of Trustees of Calif. State Univ.* (2005) 132 Cal.App.4th 359, 395-397.

GM asks the Court to strike or reduce unreasonable and duplicate billing entries. GM identifies these entries by highlighting numerous billing entries at Exhibit A to the Declaration of Heikkinen. This Exhibit generally highlights numerous time entries without specific explanation or argument as to their alleged unreasonableness. GM's Opposition also lists a number of billing entries without explanation or argument as to their alleged unreasonableness. The Court has reviewed the billing records. The Court finds the attorney hours billed to be adequately supported by the billing records and reasonably incurred.

GM also objects to the anticipatory fee request of \$4,000.00 for review of the Defendant's Opposition and preparation of a Reply, and for preparation and attendance at the hearing. The Court agrees that \$4,000 for those tasks is unreasonable. The Court will reduce this amount to \$2,000, which consists of five attorney hours at a rate of \$400 per hour.

GM also objects to the paralegal time, in part on the grounds that it is unclear whether any actual paralegal completed work as no names are included. The Court agrees that Plaintiff has not adequately supported this request. The Court cannot locate any evidence in the record which identifies the billing paralegals by name, or provides any information about their education, qualifications, and experience. Additionally, the Plaintiff's moving papers state that both paralegal and administrative time are included in this request. There is no distinction on the billing records between paralegal time, which is recoverable, and administrative assistant time, which is generally considered overhead. Therefore, the requested paralegal fee of \$2,940.00 will not be awarded.

Reasonableness of Rates: A reasonable hourly rate is determined by the prevailing rate charged to attorneys of similar skill and experience in the relevant community. See *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th

1084, 1095. However, the court may also consider the attorney's skill and expertise, the nature of the work performed, the relevant area of expertise and the attorney's customary billing rates. *Flannery v. California Highway Patrol* (1998) 61 Cal.App.4th 629, 632. A plaintiff seeking to recover hourly rates for out-of-town counsel that are higher than the local rates must show (1) a good faith effort to find local counsel, and (2) demonstrate that hiring local counsel was impracticable. *Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1243.

Here, Plaintiff's counsel seeks approval \$500 for both attorneys who billed to this matter. Counsel's declarations provide details on each attorney's education and experience. However, no evidence has been presented that a good faith effort to find local counsel was made, or to demonstrate that hiring local counsel was impracticable. Further, no evidence has been presented that a comparable, smaller-market court like Shasta has approved the rates sought. For those reasons, the Court exercises its discretion to approve the rate of \$400 per hour, which is at the high end of prevailing rates charged by attorneys of similar skill and experience in this community.

Multiplier: The amount of attorney fees awarded pursuant to the lodestar adjustment method may be increased or decreased. Such an adjustment is commonly referred to as a "fee enhancement" or "multiplier." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132 (*Ketchum*).) The trial court is neither foreclosed from, nor required to, award a multiplier. ... The Supreme Court has "set forth a number of factors the trial court may consider in adjusting the lodestar figure. These include: '(1) the novelty and difficulty of the questions involved, and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; [and] (3) the contingent nature of the fee award, both from the point of view of eventual victory on the merits and the point of view of establishing eligibility for an award.'" *Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240, 247-248.

Here, the Court declines to adjust the lodestar with a multiplier. This is a straightforward lemon law action which settled at mediation early in the case. No discovery or motion practice were undertaken. While the Court acknowledges the attorneys' skill and experience in this practice area, the case did not present novel and difficult questions or unusual skill in presentation. The nature of the litigation was within counsels' standard practice and did not preclude other employment. Finally, the contingent risk and delay in payment are standard in lemon law actions, and the delay was not unusually long or unexpected.

Costs and Expenses: The Song-Beverly Act provides that the court will award a successful plaintiff a sum equal to the aggregate amount of costs and expenses, which have been determined to have been reasonably incurred. Civ. C. § 1794(d). Plaintiff has filed a memorandum of costs. GM does not object to any costs. Total costs are \$1,327.51. Costs appear reasonably incurred and will be awarded.

The motion for attorney fees and costs is **GRANTED** in the total amount of \$23,447.51 (consisting of \$18,800 Zazzi + \$1,320 Fleckenstein + \$2,000 anticipated fees for this attorney fee motion + \$1,327.51 costs). A proposed order has been lodged and will be modified.

IN RE: COYLE

CASE NUMBER: 26CV-0210598

Tentative Ruling on Petition for Change of Name: Petitioner Caroline Louise Coyle seeks to change her name to Caroline Louise Martin. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file.